

Smt. Tripti Das v. State of U.P. & 2 Others

High Court of Judicature at Allahabad · Division Bench · 14 October 2014 · WRIT - C No. 53746 of 2014 · **Writ disposed of; petitioner relegated to Clause 6.5.**

HEADNOTE

A consumer disputing the accuracy of an electricity bill has a remedy under Clause 6.5 of the Electricity Supply Code, 2005. The High Court disposed of the writ petition without examining the bill on merits, leaving the petitioner to take that statutory recourse.

FACTUAL SUMMARY

Smt. Tripti Das received an electricity consumption bill from the second and third respondents and filed Writ-C No. 53746 of 2014 in the Allahabad High Court to dispute the correctness of that bill. The State of Uttar Pradesh and two others were arrayed as respondents. The petition was heard by a Division Bench of Chief Justice Dr. D.Y. Chandrachud and Justice P.K.S. Baghel on 14 October 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-accuracy-dispute-remedy

HOLDING

Clause 6.5 of the Electricity Supply Code, 2005 provides a remedy to a consumer disputing the accuracy of any bill; a writ petition raising that dispute is disposed of by leaving the petitioner to take that recourse. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY CONSUMPTION BILL

The Court did not examine the bill on merits and left the petitioner to Clause 6.5. ¶ 1